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September 6, 2017					
FEDERAL MARITIME COMMISSION					

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.

v.

**SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY
KNOWN AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEMS LTD.**

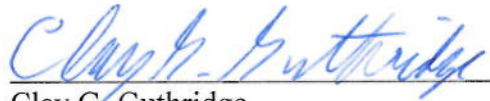
**ORDER SUSPENDING DATE FOR RESPONSES TO FILINGS IN RESPONSE TO THE
AUGUST 16, 2017, ORDER TO SUPPLEMENT THE RECORD**

On June 26, 2017, respondents Service by Air, Inc., Radiant Customs Services Inc. (f/k/a SBA Consolidators, Inc.) (Radiant/SBA) filed a motion to dismiss the Complaint for lack of subject matter jurisdiction and for failure to state a claim. Bills of lading and Customs and Border Protection Forms 3461 submitted by the parties suggested that some shipments came by water to Canadian ports, not United States ports. Therefore, on August 16, 2017, the undersigned issued an order requiring complainant CMI Distribution, Inc. (CMI) and Radiant/SBA to supplement the record. *CMI Distribution, Inc. v. Service by Air, Inc., Radiant Customs Services Inc. (f/k/a SBA Consolidators, Inc.) and LAS Freight Systems Ltd.*, FMC No. 17-05 (ALJ Aug. 16, 2017) (Order to Supplement the Record).

The information submitted in response to the August 16, 2017, order by Radiant/SBA suggests that the approximately sixty shipments at issue came to the United States in three different ways: Some by water from a foreign port to a port in the United States; some by water from a foreign port to a port in Canada; and some by air to the United States. After review of these documents, the undersigned asked the parties to appear through counsel for a telephone conference on September 6, 2017, at 3:00 P.M. EDT. CMI was represented by attorneys Brendan Collins and David Street. Radiant/SBA was represented by attorney Steven W. Block. No attorney or representative appeared for respondent LAS Freight Systems Ltd. An attempt to make an audio recording of the conference for distribution to the parties was not successful.

The parties agree that the Commission only has subject matter jurisdiction over shipments by water from a foreign port to a port in the United States. Given the information described above, it appears that the Commission does not have subject matter jurisdiction over some of the shipments at issue. Therefore, CMI and Radiant/SBA have agreed to confer to attempt to stipulate which shipments came by water from a foreign port to a port in the United States. They will file a stipulation, if appropriate, by September 18, 2017. The undersigned will then address issues remaining in the motion to dismiss.

The requirement to file responses to the submissions in response to the August 16, 2017, Order is suspended. If appropriate, a new date will be established after the parties submit their stipulation.



Clay G. Guthridge
Administrative Law Judge